

CIVIL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK: HOUSING PART F
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CHELSEA PARTNERS I, LLC,

Petitioner (Landlord),

Index No. L&T 081870/17

-against-

AFFIRMATION IN SUPPORT

MARCELO ROMANO,
249 West 26th Street, Apt. 1A
New York, New York 10001

Respondent (Tenant),

-and-

“JOHN DOE,”

Respondent (Undertenant).

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MICHAEL PEREIRA, an attorney duly licensed to practice law in the Courts of the
State of New York, hereby affirms:

1. I am of counsel to Tiffany A. Liston, Esq., Mobilization for Justice, Inc., 100 Williams Street, 6th floor, New York, NY 10038, attorneys for Respondent Marcelo Romano.
2. I make this affirmation in support of Respondent’s motion pursuant to CPLR § 3126, seeking penalties against Petitioner for its failure to produce disclosure, in defiance of prior Court Orders.
3. As set forth below, in the annexed exhibits and annexed memorandum of law, this Court should grant Respondent’s motion in its entirety.

Background and Procedural History

4. This is a holdover proceeding where Petitioner alleges, in relevant part, that Respondent is a “month-to-month” tenant, whose use of the apartment “for residential living

purposes is illegal and in violation of the Certificate of Occupancy.” Exhibit A contains a copy of the Petition.

5. Respondent answers, *inter alia*: that his apartment is residential, notwithstanding Petitioner’s failure to obtain a valid residential certificate of occupancy; that his apartment is rent stabilized; and that Petitioner overcharged him, and that he overpaid, in excess of the legal regulated rent. Exhibit B contains a copy of Respondent’s Answer.

6. In March 2018, Respondent moved for leave to conduct discovery, seeking information relevant to his claims and defenses to substantiate whether the apartment is capable of being legalized for residential use; whether it is rent stabilized and whether the rents charged were legal.

7. By Order, dated October 12, 2018, this Court granted Respondent’s motion, in extent, “directing petitioner to respond to respondent’s Notice to Produce Documents” within 45 days from service of the notice of entry (the First Discovery Order). A copy of the First Discovery Order is attached as Exhibit C.

8. Over the following year, the parties engaged in motion practice, concerning *inter alia*, Respondent’s contention that Petitioner failed to adequately produce its disclosure. By Decision & Order, dated January 21, 2020 (the Second Discovery Order), Hon. Frances A. Ortiz, granted Respondent’s motion to compel, in relevant part, and directed Petitioner to:

- produce “outstanding responses [to Respondent’s counsel] within 30 days of the date of this decision and order[;]”
- explain contradictions “in a supplemental affidavit [,]” to explain why Petitioner once claims in an affidavit that “there are no tax credits related to the building[,]” but then also claimed in a prior affidavit that the “building received a J-51 tax abatement, after substantial rehabilitation[;] and

- “explain why it failed to provide copies of rent ledgers showing the rents in effect, when respondent first moved into the building and reasoning why no variances have been sought to legalize the unit.”

Exhibit D contains a copy of the Second Discovery Order.

9. Petitioner served Respondent with a Notice of Entry, for the Second Discovery Order, dated January 22, 2020, by regular mail.

10. Respondent, likewise, served Petitioner with a Notice of Entry, for the Second Discovery Order, dated January 23, 2020, by regular mail and email.

11. By notice of motion, dated February 21, 2020, Respondent subsequently moved for leave to reargue this Court’s Decision, dated January 21, 2020, but only to the limited extent that it denied his motion for summary judgment (the motion to reargue).

12. As of March 4, 2020, the parties completed their briefs on Respondent’s motion to reargue.

13. On March 5, 2020, the proceeding adjourned, as Judge Ortiz was unable to hear argument on that date.

14. On March 11, 2020, I sent Petitioner’s counsel an email, informing that Petitioner had not produced pursuant to the 30-day deadlines in the Second Discovery Order, and inquiring when such production would occur. Exhibit E contains a copy of that email.

15. All subsequent appearances were adjourned due to the coronavirus pandemic.

16. In June of 2020, I sent Petitioner’s counsel another email informing that Petitioner had not produced pursuant to the Second Discovery Order, inquiring when such production would occur and advising that Respondent would be forced to make the instant motion if no production occurred. Exhibit F contains a copy of that email.

17. The same month, Petitioner's counsel responded in an email, requesting more time to produce *inter alia* due to some personal circumstances.

18. At Petitioner's request, and as a professional courtesy, I re-sent the underlying discovery demands and Second Discovery Order via email.

19. To date, however, approximately eight months from the deadlines imposed by the Second Discovery Order, Petitioner has not produced any additional material.

WHEREFORE for all of the above reasons, and as set forth in the annexed memorandum of law, this Court should grant Respondent's motion, pursuant to CPLR § 3126, penalizing Petitioner for its failure to produce disclosure, in defiance of Orders from this Court; and for such other and further relief as this Court deems just and proper.

Dated: October 15, 2020
New York, New York



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